

HOUSE No. 775

The Commonwealth of Massachusetts

PRESENTED BY:

John J. Lawn, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a commission on aging disabled adults.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>John J. Lawn, Jr.</i>	<i>10th Middlesex</i>	<i>1/14/2025</i>

HOUSE No. 775

By Representative Lawn of Watertown, a petition (accompanied by bill, House, No. 775) of John J. Lawn, Jr., for legislation to establish a commission on aging disabled adults. Elder Affairs.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a commission on aging disabled adults.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 3 of the General Laws, as appearing in the 2022 Official Edition, is
2 hereby amended by inserting after section 75 the following section:-

3 Section 76. (a) There shall be a special commission established pursuant to section 2A of
4 chapter 4 of the General Laws to study the aging disabled adult population in the commonwealth.
5 The commission shall consist of: 1 member of the house of representatives appointed by the
6 speaker of the house, who shall serve as co-chair; 1 member of the senate appointed by the
7 senate president, who shall serve as co-chair; the secretary of the executive office of aging and
8 independence or a designee; the director of housing and community development or a designee;
9 the commissioner of public health or a designee; the director of the LGBT Aging Project or a
10 designee; a representative of the National Association on HIV Over Fifty, Inc.; the executive
11 director of Mass Home Care or a designee; the director of AARP Massachusetts or a designee;
12 the executive director of the Massachusetts Association of Councils on Aging, Inc. or a designee;
13 the director of the Massachusetts Senior Care Association, Inc. or a designee; the director of the

Home Care Aides Council or a designee and 5 members to be appointed by the governor, 1 of whom shall be a member of the Massachusetts bar who practices elder law, 1 of whom shall be an expert in adult disability public policy or research and 3 aging disabled adults. The governor's appointees shall ensure that the commission has at least 1 representative from each of the following areas: Cape Cod, western Massachusetts and central Massachusetts.

(b) The commission shall investigate, analyze and study the health, housing, financial, social, psychosocial and long-term care needs of aging disabled adults and their caregivers and shall make recommendations to improve access to benefits and services where appropriate and necessary. In furtherance of its duties, the commission shall: (i) examine the impact of the commonwealth's policies and regulations on aging disabled adults and make recommendations to ensure equality of access, treatment, care and benefits; (ii) examine strategies to increase provider awareness of the needs of aging disabled adults and their caregivers and improve the competence of and access to treatment, services and ongoing care, including preventive care; (iii) assess the funding and programming needed to enhance services to the growing population of aging disabled adults; (iv) examine best practices for increasing access, reducing isolation, preventing abuse and exploitation, promoting independence and self-determination, strengthening caregiving, eliminating disparities and improving quality of life; (v) examine whether certain policies and practices, or the absence of certain policies and practice, promote the premature admission of aging disabled adults to institutional care; (vi) recommend, as appropriate and necessary, lower cost and culturally appropriate home and community-based alternatives to institutional care; (vii) examine the feasibility of developing statewide training curricula to improve provider competency in the delivery of health, housing and long-term support services to aging disabled adults and their caregivers; and (viii) examine outreach

37 protocols to reduce apprehension among aging disabled adults and their caregivers of utilizing
38 mainstream providers.

39 (c) The commission, in formulating its recommendations, shall consider the best policies
40 and practices in other states and jurisdictions. The commission may hold regular public
41 meetings, fact-finding hearings and other public forums as it considers necessary.

42 (d) The commission may accept and solicit funds, including any gifts, donations, grants
43 or bequests or any federal funds to further the purposes of this section. These funds shall be
44 deposited in a separate account with the state treasurer, shall be received by the treasurer on
45 behalf of the commonwealth and shall be expended by the commission in accordance with law.

46 (e) The commission shall submit a report on its activities and findings, including any
47 recommendations, to the governor, the clerks of the house of representatives and the senate and
48 the house and senate chairs of the joint committee on elder affairs and shall file at least 1 report
49 by December 31 in the even-numbered years.